

The Claremont City Council held a meeting on Wednesday, August 26, 2020, via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

<https://us02web.zoom.us/j/89756563137?pwd=Mnd4MjdLem5tN3VIUEd6R21RR1F2Zz09>

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Members of the Council present were:

Ward I Councilor Andrew O'Hearne, Council Chambers, Councilors Sweetser and Stone

At-Large Councilor Abigail Kier, home, husband, son, step-father, and mother

At-Large Councilor Erica Sweetser, Council Chambers, Councilors Stone and O'Hearne

Assistant Mayor Allen Damren, home, alone

Mayor Charlene Lovett, home, alone

At-Large Councilor Debora Matteau, home, alone

At-Large Councilor Nicholas Koloski, Escape Factory, alone

Ward II Councilor James Contois, home, alone

Ward III Councilor Jonathan Stone, Council Chambers, Councilors O'Hearne and Sweetser

Also present:

Edward Morris, City Manager

AGENDA CHANGES

None.

MAYOR'S NOTES

Norma Limoges Retirement Proclamation

Mayor Lovett read a proclamation for Norma Limoges, Public Works Office Manager, who is retiring from the City of Claremont after serving 29 years.

Mayor Lovett said on Saturday, there will be a drive through event at Stevens High School to celebrate the 100th anniversary of Women's Suffrage and Women's Right to Vote. It will be hosted by the local Rotary Club. There will be a virtual lead conference, September 30, 8 a.m.-12 noon. It will be hosted by Nashua and is free.

Councilor Sweetser talked about renovations happening in Claremont (i.e. the campground at the race track and Ramunto's beer garden).

CITY MANAGER'S REPORT

Mr. Morris gave a thank you to Norma Limoges for her 29 years working with the City. She is very knowledgeable and very helpful. He wished her well in her retirement. He did say that she will come back in about a month to help train Nichole Myers, who replaces her at Public Works.

- **Leak Detection** – We announced prior to COVID-19 that the City received a leak detection grant from the State of New Hampshire. Unfortunately, due to COVID-19 that program has been cancelled for this year. We decided to move forward, and hire a contractor to complete our leak detection program this year. They have found a few small leaks, which have been repaired. In a drought year, it was very important to us to keep this program moving.
- **Airport-** The Apron Rehabilitation Project Phase II will commence on August 24th with the mobilization of equipment and barricading the effective areas as the runway is still in operation. It's expected to take 30 days +/- to complete the project.
- **Fire Department** – I want to inform the City Council that in preparation for delivery of our new fire apparatus, we are starting the process to sell the 2006 E-One pumper as proposed during the FY2020 budget process, and in accordance with Article III, Division 12, Section 2-340 of the Claremont Municipal Code. We will be working with a third-party vendor, as we have in the past, to advertise and sell this vehicle.
- **Paving Update-** The Department of Public Works has been busy paving and completing infrastructure work this summer. We have scheduled the following Streets to be completed this fall:

Street	From	To
Lea	Maple Ave	End
Brookside	Lea	End
Bellevue	Bible Hill	End
Durham	Langseth	Bible Hill
Langseth	Clifton	Edwin
Marquis	Edwin	End
Ainsworth	Rte 12A	River Road
Grissom	Guard Rails	Charlstown Rd
Winter	Slab City	Rte 120

- **Hero Pup** – We are very pleased to announce that our newest K-9, Officer Sullivan, has started his full-time employment with the City of Claremont. He has completed his training with the Hero Pups organization and Det. Margaret Barry has been partnered with Officer Sullivan, AKA “Sully.” He has already been to some community locations to meet some residents and has been met with smiles and ear rubs. We are all very excited to start this new program which will serve as a very valuable asset to CPD to help facilitate interaction with children or adults in order to reduce anxiety and increase communications between the person and the investigator. We really hope that Sully will help foster dialog and communications between the department and the community we serve.
- **City Hall Complex** – The HVAC units have been installed on the City Hall Complex roof over the Opera House, and final programing is currently taking place. Melanson Roofing will be here on August 22, 2020 to start the roofing project. We expect this entire project to be completed by the end of September.
- **Code Enforcement and Building Permits** – The City is happy to report that Sean Glasscock has rejoined the team and is diligently working on code enforcement. Many property maintenance issues that have arisen or have gotten worse over the last year, were due to the absence of a dedicated property maintenance code enforcement official. Steve Coombs did a wonderful job keeping things moving, but did not have the time to fully cover two full-time positions. To have an experienced second person in the office again, is already having a positive impact on property maintenance, citizen complaint inspections, and ultimately, resolution to many ongoing issues.

On another note, building permits are up for the first time in many years. So far this year, we have 5 permits for new homes, compared to the 0-2 we normally average this time of year. We also have some great sustainable energy projects going on with the Soup Kitchen and Makerspace: both are adding solar panels to their rooftops.

COVID-19 Update

- **COVID-19 Update** – As of the time this report was written, the State of New Hampshire has been trending down on COVID-19 cases per day with the last few days being under 20 positive cases per day, Statewide. Even as NH remains at a relatively low rate of infection,

we must stay vigilant in our efforts to control the spread of the virus. We currently only have under 5 active cases in all of Sullivan County according to the DHHS website. If we continue to keep good hand hygiene and sanitization efforts, maintain social distancing, and wear masks when in public, we can continue to keep our numbers low and protect the health of the citizens of Claremont.

As of this morning, there were 6 cases in Sullivan County and less than 4 in Claremont.

As of August 15th, the New Hampshire Office of Emergency Management has demobilized the National Guard COVID-19 testing site located at the Claremont Middle School. Valley Regional Hospital has taken up the testing in coordination with NH-HHS. For pre-registration or to make an appointment please visit <https://www.vrh.org/covid-19-information/>. For additional questions please call the COVID Hotline at 603-542-7850. Information is also available on the city's webpage and other media sites, with links to online registration portal.

New Hampshire has accepted and will be offering the new \$300-a-week unemployment benefit for qualifying individuals. Please visit <https://www.unemploymentbenefits.nh.gov/new-300-benefit> for more information.

Mr. Morris said that over \$4.2 million CARES Act funding has been received in the City including for private businesses and non-profits.

Assistant Mayor Damren asked to pass on thanks to Public Works for all the road work. He noted that is what can happen when they have the money in the budget.

Councilor Koloski asked about an email he sent regarding line striping in the City. He inquired about lines on Washington Street by CVS where people were lining up three cars wide. Mr. Morris will look into that.

Councilor Koloski said he sent a list of stuff regarding parts of the City's website not being functional. He asked where to find Boards and Commissions. Mr. Morris will look into it to see if it can be made easier to find.

CITIZEN'S FORUM

No one spoke.

OLD BUSINESS

Resolution 2021-13 Relative to RSA Chapter 79-E - Community Revitalization Tax Relief Incentive – Public Hearing

WHEREAS RSA Chapter 79-E "Community Revitalization Tax Relief Incentive" (hereinafter "RSA 79-E") declares it a public benefit to enhance downtown and town centers; and

WHEREAS RSA 79-E further declares it a public benefit to encourage the rehabilitation of underutilized structures in urban and town centers as a means of encouraging growth of economic, residential, and municipal uses in a more compact pattern in accordance with RSA 9-B.; and

WHEREAS RSA 79-E also declares it a public benefit providing short-term property assessment tax relief and related covenants if they encourage the substantial rehabilitation and use of qualifying structures or, in certain cases, the replacement of qualifying structures; and

WHEREAS a "qualifying structure" means a building located in the City's Downtown and Lower Village Historic Districts as officially designated by the National Register of Historic Places and as further delineated at the area encompassed by the Claremont Historic District, Zoning Map #7 (hereinafter "Historic Districts"), and shall also mean a building located outside the Historic Districts that is listed on or determined eligible for listing on the National Register of Historic Places; and the City Center Zoning District as designated in the official zoning inset map as attached; and

WHEREAS the districts in Claremont eligible for tax relief under the provisions of this resolution include the areas included in the Historic Districts as depicted on Zoning Map #7; and the City Center Zoning District as designated in the official zoning inset map as attached; and

WHEREAS RSA 79-E permits the city to adopt or modify the requirements for requests for community revitalization tax relief incentives;

NOW THEREFORE BE IT RESOLVED by the Claremont City Council that the City hereby adopts and implements the provisions of RSA 79-E, with the certain modifications, as follows:

- A. "Substantial rehabilitation" shall mean rehabilitation of a qualifying structure which costs at least 25 per cent or \$75,000 of the pre-rehabilitation assessed valuation, whichever is less, and replacement of a qualifying structure which costs at least 25 percent or \$75,000 of the pre-replacement assessed valuation, whichever is less;
- B. "Tax Relief Period" shall mean a period of up to 5 years, beginning only upon completion of substantial rehabilitation or, in the case of a replacement structure, upon completion of its construction, as well as an additional period of up to 4 years at the Council's discretion for the substantial rehabilitation of a qualifying structure that is listed on or determined eligible for listing on the National Register of Historic Places or state register of historic places, provided that the substantial rehabilitation is conducted in accordance with the U.S. Secretary of Interior's Standards for Rehabilitation, as well as an additional period of up to 2 years of tax relief, also at the Council's discretion, for a project that results in new residential units; and

BE IT FURTHER RESOLVED that the property owner, as a condition of such tax relief, shall

- A. Document the public benefit at the time of the application for tax relief;

- B. Grant to the City a covenant ensuring that the structure shall be maintained and used in a manner that furthers the public benefits for which the tax relief was granted and shall require the property owner to obtain casualty insurance, and flood insurance, if appropriate, for twice the term of the tax relief;
- C. Grant to the City a lien against the property for the purpose of ensuring proper restoration or demolition of damaged structures and property; and
- D. Maintain the property as taxable, regardless of whether the property owner is otherwise subject to property taxes under RSA Chapter 72; and
- E. Provide the City promptly with all information and documentation that the City may deem relevant for review of the application for such tax relief, as well as for review of the rehabilitation or replacement project under federal, state and local laws, codes and regulations, as may be applicable; and

BE IT FURTHER RESOLVED that if the covenant is terminated for any reason, the City shall assess all current and arrears taxes to the owner as though no tax relief was granted, with interest, in accordance with RSA Chapter 75; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(Majority Vote Required)*

Mayor Lovett gave a brief background. This resolution is to add the two years, in addition to five years, plus four years that have already been approved, for the tax relief period for projects resulting in new residential units as allowed by RSA 79-E.

Nancy Merrill, Planning and Development Director, said Attorney Jane Taylor reviewed the resolution for accuracy.

A motion was made by Councilor Contois and seconded by Councilor Koloski to adopt Resolution 2021-13 Relative to RSA Chapter 79-E - Community Revitalization Tax Relief Incentive.

Councilor Contois read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:
O'Hearne - yes
Kier - yes
Sweetser - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Mayor Lovett suggested this resolution be sent to the Policy Committee, along with the RSA, in order to discuss whether or not it would be best if the resolution had all the provisions of the RSA included instead of amending the resolution every time an application is received for something different. There were no objections from the Council.

Resolution 2021-11 Community Revitalization Tax Relief Program (RSA 79-E) – 29
Water Street – Public Hearing

WHEREAS the City Council passed Resolution 2016-11 on July 22, 2015, adopting the provisions of RSA 79-E, Community Revitalization Tax Relief Incentive, as further amended by Resolution 2019-8 and as readopted by Resolution 2021-13; and

WHEREAS on August 5, 2020, the City received an application from Chinburg Management, LLC or Assigns seeking property tax relief under the provisions of RSA 79-E as incentive for substantial rehabilitation for property located at 29 Water Street (the “Property”); and

WHEREAS the Property is located within the City’s 79-E Incentive District; and

WHEREAS Chinburg Management, LLC or Assigns plan to invest approximately \$10,000,000.00 to substantially rehabilitate the Property into approximately 85 market rate apartments; and

WHEREAS the City Council has determined that the application has met the requirements of RSA 79-E:14 and has determined that the construction cost for the proposed apartment building shall not result in the use of government grants and funds whereby such funds would total 50% or more of the project’s construction cost; and

WHEREAS the City Council finds that the application satisfies all applicable provisions of RSA 79-E and is eligible pursuant to RSA 79-E:5, I for a Community Tax Relief Incentive for a period up to five (5) years, beginning with the completion of the substantial rehabilitation of the Property, and further is eligible pursuant to RSA 79-E:5, III for an additional four (4) years of tax relief for substantial rehabilitation of a qualifying structure listed on the National Register of Historic Places that will be rehabilitated in accordance with the U.S. Secretary of Interior’s Standards for Rehabilitation, and further is eligible pursuant to RSA 79-E:, II for an additional two (2) years of tax relief for new residential units.

NOW THEREFORE BE IT RESOLVED that the City Council hereby determines the proposed project has a public benefit in accordance with RSA 79-E:7, I, II, II-a, III, and IV; and

BE IT FURTHER RESOLVED the City Council herein approves the application for tax relief for a period of eleven (11) years per RSA 79-E:5, I, II and III, commencing upon the completion

of the substantial rehabilitation of the Property as evidenced by the issuance of a Certificate of Occupancy; and

BE IT FURTHER RESOLVED that the granting of this Community Tax Relief Incentive is subject to the granting by Chinburg Management, LLC or Assigns of a covenant, acceptable to the City Solicitor, in accordance with RSA 79-E:8, ensuring that the property shall be maintained and used in a manner that furthers the public benefits for which the tax relief was granted and such other requirements as are set forth in Resolution 2016-11; and

BE IT FURTHER RESOLVED that if the covenant is terminated for any reason, the City shall assess all current and arrears taxes to the owner as though no tax relief was granted, with interest, in accordance with RSA Chapter 75; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(Majority Vote Required)*

Mr. Morris said this is a continuation from the last meeting. Chinburg Properties is looking for an RSA 79-E tax relief incentive for 29 Water Street.

Nancy Merrill, Planning and Development Director, said that Attorney Taylor suggested a three-word amendment to the resolution. In the first Whereas, add “as readopted by” Resolution 2021-13.

A motion was made by Councilor Sweetser and seconded by Assistant Mayor Damren to adopt Resolution 2021-11 Community Revitalization Tax Relief Program (RSA 79-E) – 29 Water Street.

Councilor Sweetser read the resolution into the record.

Councilors made some comments and Mayor Lovett made clear that the assessed value of this property is \$753,700 and if approved, that number will stay in place for 11 years.

Mayor Lovett opened the public hearing.

Walt Stapleton, Ward 3, spoke in favor of this resolution.

Mayor Lovett closed the public hearing.

Mayor Lovett said this project meets all elements of benefit to the public as stated in the RSA.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Ms. Merrill said the next steps will be meeting with the development team as they work out a design for the building, talk to the Planning Board to amend the site plan, and to work on the easement and surface parking which will come back to the Council.

Resolution 2021-10 Authorize Bond for Up to \$4.8 Million for Pleasant Street Area
Revitalization Phase II – Public Hearing

WHEREAS the City Council of the City of Claremont, New Hampshire (the “City Council”) has identified the revitalization of Pleasant Street as the next phase in the downtown revitalization plan (“Downtown Phase II”); having reviewed the master plan detail outlining the necessity of this major improvement as well as the need to separate combined drainage infrastructure concerns and addressing truck traffic on the street;

BE IT RESOLVED by the City Council, after public hearing duly noticed, acting under and pursuant to the City Charter, including Section 49 therein, and the laws of the State of New Hampshire including RSA Chapter 33 and, as applicable, RSA Chapter 35-A, that:

The City is authorized to issue general obligation bonds, and notes in anticipation thereof, in a principal amount not to exceed \$4,800,000.00 (the “Bonds”), to finance costs to construct and equip renovations and improvements to and for (i) Pleasant Street, including parking and streetscape improvements; (ii) streets and intersections in the vicinity, and signage in the vicinity and elsewhere, to provide for the redirecting and flow of truck traffic; and (iii) drainage systems and facilities in the vicinity of the foregoing, including separation of combined sewer and drain water drainage (the “Project”);

The proceeds of the Bonds are appropriated to provide for the costs of the Project;

The City Council determines that the expected useful life of the Project is at least twenty-five years, which exceeds the term of permanent bonds and any anticipated temporary notes as described below;

The Treasurer and the City Manager are authorized to prepare, issue, and provide for sale of the Bonds at one time or from time to time, as one or more separate issues, including temporary notes, if any, and long term bonds payable as to principal in not more than twenty (20) consecutive annual installments, and to determine to the extent not inconsistent with this Resolution the date(s), maturity(ies), denomination(s), interest rate(s), place(s) of payment, call(s) for redemption with or without premium, form(s), and other details of said Bonds, including execution and delivery of said Bonds against payment therefor;

The Bonds are to be executed and delivered by the Treasurer and countersigned by a majority of the City Council under the official seal of the City attested by the City Clerk (“Clerk”), and otherwise are to be in such form and contain such terms and provisions not inconsistent herewith, as they shall approve, their approval to be conclusively evidenced by their execution thereof, and any signature thereon may be by facsimile to the extent permitted by law;

The Bonds are to be issued in the name of the City and in registered form transferable only on the registration books of the City, which registration books may be kept by the City or its transfer agent, upon surrender thereof with a written instrument of transfer, duly executed by the registered owner or his/her attorney duly authorized in writing;

In lieu of physical certificates of any of the Bonds, and as an alternative to the provisions of the preceding paragraph regarding physical transfer, the Treasurer is authorized to undertake all acts necessary to provide for the issuance and transfer of such Bonds in book-entry form pursuant to the Depository Trust Company Book-Entry Only System, and the Treasurer is authorized and empowered to enter into a Letter of Representation or any other contract, agreement or understanding necessary or, in the Treasurer’s opinion, appropriate in order to qualify the Bonds for and participate in the Depository Trust Company Book-Entry Only System;

The Treasurer, City Manager, and Clerk from time to time are authorized to execute such Bonds as may be required to provide for exchanges or transfers of Bonds authorized hereunder;

The Treasurer is authorized to arrange for the sale of the Bonds to the New Hampshire Municipal Bond Bank or to such other parties at public or private sale as the Treasurer determines to be in the City’s interest, to execute and deliver loan agreements and other contracts for that purpose, including without limitation loan agreement(s) with the New Hampshire Municipal Bond Bank, and to select and hire such financial advisors, underwriters, registrars, paying agents, transfer agents, and other consultants, if any, as the Treasurer deems necessary to assist with the sale of the Bonds, all on such terms not inconsistent with this Order as the Treasurer shall approve;

The Treasurer is authorized to prepare, or cause to be prepared, a Preliminary Official Statement and an Official Statement for use in the offering and sale of any of the Bonds herein authorized, any such Preliminary Official Statement and Official Statement to be in such form and contain such information as may be approved by the Treasurer, with the advice of the bond counsel for the City, and that the use and distribution of any such Preliminary Official Statement and Official Statement in the name and on behalf of the City in connection with offering the Bonds for sale is approved;

The Treasurer on behalf of the City is authorized to covenant that (i) no part of the proceeds of the Bonds shall be used, directly or indirectly, to acquire any securities and obligations, the acquisition of which would cause the Bonds to be “arbitrage bonds” within the meaning of Section 148 of the Internal Revenue Code of 1986, as amended, (the “Code”), and (ii) the proceeds of the Bonds and the Project financed by the Bonds shall not be used in a manner that would cause the Bonds to be “private activity bonds” within the meaning of Section 141 of the Code;

The Treasurer is authorized to designate any of the Bonds, as applicable, as qualified tax exempt obligations for purposes of Section 265(b)(3) of the Code;

In connection with the Bonds, the Treasurer is authorized to execute and deliver on behalf of the City an Arbitrage and Use of Proceeds Certificate in form approved by the City's bond counsel, and to covenant on behalf of the City to file any information report and pay any rebate due to the United States in connection with the issuance of the Bonds, and to take all other lawful actions necessary to ensure that the interest on the Bonds will be excludable from the gross income of the owners thereof for purposes of federal income taxation and to refrain from taking any action which would cause interest on the Bonds to become includable in the gross income of the owners thereof;

The Treasurer is authorized to covenant and agree, on behalf of the City, for the benefit of the holders of the Bonds, that the City will file any required reports, make any annual financial or material event disclosure, and take any other actions that may be necessary to ensure that the disclosure requirements imposed by Rule 15c2-12 of the Securities and Exchange Commission, if applicable, are met;

Appropriate officials of the City are authorized to execute and deliver on behalf of the City such other documents and certificates as may be necessary or convenient to the issuance, execution, or delivery of the Bonds;

The Treasurer, City Manager, Clerk, and other proper officials of the City are authorized and empowered in its name and on its behalf to do or cause to be done all such acts and things, not inconsistent herewith, as may be necessary or desirable in order to effect the issuance, sale, and delivery of the Bonds and the accomplishment of the Project herein authorized;

If the Treasurer, City Manager, or Clerk for any reason is unavailable to, as applicable, approve, execute, or attest the Bonds or any related financing documents, the person or persons then acting in any such capacity, whether as assistant, deputy, or otherwise, is authorized to act for such unavailable official with the same force and effect as if such official had himself/herself performed such act;

If any of the officers or officials of the City who have signed, attested, or sealed the Bonds shall cease to be such officers or officials before the Bonds so signed, attested, and sealed shall have been actually authenticated or delivered by the City, such Bonds nevertheless may be authenticated, delivered, and issued with the same force and effect as though the person or persons who signed, attested, or sealed the Bonds had not ceased to be such officer or official; and also, any such Bonds may be signed, attested, or sealed on behalf of the City by those persons who, at the actual date of execution of the Bonds, shall be the proper officers or officials of the City, although at the nominal date of the Bonds any such person shall not have been such officer or official;

The term "cost" or "costs," as used herein and applied to the Project, includes all costs related to the Project, including without limitation costs, as applicable, for (1) acquiring, constructing, renovating, repairing, improving, equipping, designing, and engineering all or any portion of the

Project and infrastructure related to the Project; (2) site preparation, including as applicable, removal of any existing buildings and improvements; (3) any real property interests, rights, easements, licenses and franchises acquired or conveyed in connection with the Project; (4) planning and development, site selection, preparation of specifications, surveys, engineering and feasibility studies, and other professional services associated with the Project; (5) environmental studies, appraisals and assessments; and (6) financing charges and issuance costs related to the sale and issuance of the Bonds, including without limitation premiums for insurance, interest prior to and during construction and for a period not greater than three (3) years from the issue date of the Bonds and for any additional period permitted under Section 148 of the Code, financial advisor fees and costs, underwriters' fees and costs, legal and accounting fees and costs, application fees, and other fees and expenses;

The Treasurer in consultation with the City's bond counsel is authorized to implement written procedures with respect to the Bonds for the purpose of: (i) ensuring timely "remedial action" for any portion of the Bonds that may become "non-qualified bonds," as those terms are defined in the Code and regulations thereunder; and (ii) monitoring the City's compliance following the issuance of the Bonds with the arbitrage, yield restriction and rebate requirements of the Code and regulations thereunder;

The City resolves and declares its official intent pursuant to Section 1.150-2(e) of the Treasury Regulations that the City reasonably expects to use the proceeds of the Bonds to reimburse certain original expenditures from the City's general or other fund, paid not earlier than 60 days prior to adoption of this Resolution or to be paid, which original expenditures have been or will be incurred in connection with costs of the Project; and further declares that the City reasonably expects that the amount of Bonds authorized hereby is the maximum principal amount that the City will issue to finance the Project;

The Clerk is authorized and directed to file an attested copy of this Order in the record of proceedings of the City Council, which record shall be open to public inspection; and

All actions undertaken by the City consistent with this resolution are hereby confirmed, ratified and approved. *(2/3 Vote Required)*

Mr. Morris said the City started talking about this in June in order to fully explain the project. It is important to note that the discussion of revitalization of the downtown started in 1960. A lot of this is covered in the Master Plan. On Saturday, the Council took a tour of the area. Regarding blight, City Staff is looking at the whole City. Trash is accumulating in front of some of the vacant stores, so trash cans have been moved closer to those areas. Moving forward, the City will work with volunteers from the sober house to help keep the area clean. Cameras will be used in order to look back in case something gets damaged. Increasing the number of people in the downtown will decrease some of the litter and vandalism in the area. The Fire Department will restart mercantile inspections. He has charged all City employees to keep their eyes open and to report potholes, trash, etc. He said the parking program is being reinstituted. There will be increased Police foot traffic in the downtown. The City will follow the engineer's recommendation on the maintenance program. He's looking at an "adopt-a-spot" program. The

Claremont Conservation Commission has put out a litter survey and the City will work with them on that.

A motion was made by Councilor Contois and seconded by Councilor Kier to adopt Resolution 2021-10 Authorize Bond for Up to \$4.8 Million for Pleasant Street Area Revitalization Phase II.

Councilor Contois read the resolution into the record.

Councilor Sweetser read an email from Joe Tarr in favor of the Pleasant Street Project.

There was discussion about the dollar amount. Mr. Morris said the numbers came back at \$4.55 million, so there is a little contingency. Brian Colburn, Chinburg Properties, said the numbers are based on up-to-date estimates based on the design.

Councilor O'Hearne was concerned about moving the Truck Route to Mulberry Street. Mr. Morris said that decision would be up to Council. Part of this project is moving the Truck Route. Councilor O'Hearne asked if the City would need to improve Mulberry Street. Mr. Morris said over time the City may have to address Mulberry Street.

Mr. Colburn said the cost includes signage and minor changes to a couple of intersections and an island reconstruction, but there is no money in there to resurface Mulberry Street. The pavement is in fair condition. Truck traffic is not extreme.

Mr. Koloski has received several letters and calls in support of the project. He has not heard of a lot of people in opposition. He encouraged people to reach out and be a part of the process.

Mr. Morris said regarding the road and paving issue, there has been a lot of paving this year. There will be a lot of paving done in addition to this project.

Mayor Lovett opened the public hearing.

John Cloutier, State Representative and Ward 1 resident, talked about relocation of a state route. All that has to be done is to send a letter to NH DOT that the City is relocating Route 11.

Walt Stapleton, Ward 3, talked about the number of trucks he saw passing by the Moody building. He talked about the empty store fronts, which is a negative for the City, and that he thinks the project will be a benefit to those. He said the City has to take care of the understreet infrastructure regardless of the outcome of the bond vote. This project will improve the City's image.

Mayor Lovett closed the public hearing.

Roll call vote:
O'Hearne - yes
Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-9 Authorize Bond for Up to \$1 Million for Communications Dispatch Center – Public Hearing

WHEREAS the City Council of the City of Claremont, New Hampshire (the “City Council”) has recognized the urgent need for an improved Communications Dispatch Center; and

BE IT RESOLVED by the City Council, after public hearing duly noticed, acting under and pursuant to the City Charter, including Section 49 therein, and the laws of the State of New Hampshire including RSA Chapter 33 and, as applicable, RSA Chapter 35-A, that:

The City is authorized to issue general obligation bonds, and notes in anticipation thereof, in a principal amount not to exceed \$1,000,000.00 (the “Bonds”), to finance costs to acquire and install new Community Dispatch Center (“Center”) equipment, to remove existing equipment and to make Center improvements and renovations in connection with the foregoing, either at the existing Center or as part of a regional Center option located in another building; and as applicable to renovate the building selected for such regional Center option (the “Project”);

The proceeds of the Bonds are appropriated to provide for the costs of the Project;

The City Council determines that the expected useful life of the Project exceeds the term of permanent bonds and any anticipated temporary notes as described below;

The Treasurer and the City Manager are authorized to prepare, issue, and provide for sale of the Bonds at one time or from time to time, as one or more separate issues, including temporary notes, if any, and long term bonds payable as to principal in not more than twenty (20) consecutive annual installments, and to determine to the extent not inconsistent with this Resolution the date(s), maturity(ies), denomination(s), interest rate(s), place(s) of payment, call(s) for redemption with or without premium, form(s), and other details of said Bonds, including execution and delivery of said Bonds against payment therefor;

The Bonds are to be executed and delivered by the Treasurer and countersigned by a majority of the City Council under the official seal of the City attested by the City Clerk (“Clerk”), and otherwise are to be in such form and contain such terms and provisions not inconsistent herewith, as they shall approve, their approval to be conclusively evidenced by their execution thereof, and any signature thereon may be by facsimile to the extent permitted by law;

The Bonds are to be issued in the name of the City and in registered form transferable only on the registration books of the City, which registration books may be kept by the City or its transfer agent, upon surrender thereof with a written instrument of transfer, duly executed by the registered owner or his/her attorney duly authorized in writing;

In lieu of physical certificates of any of the Bonds, and as an alternative to the provisions of the preceding paragraph regarding physical transfer, the Treasurer is authorized to undertake all acts necessary to provide for the issuance and transfer of such Bonds in book-entry form pursuant to the Depository Trust Company Book-Entry Only System, and the Treasurer is authorized and empowered to enter into a Letter of Representation or any other contract, agreement or understanding necessary or, in the Treasurer's opinion, appropriate in order to qualify the Bonds for and participate in the Depository Trust Company Book-Entry Only System;

The Treasurer, City Manager, and Clerk from time to time are authorized to execute such Bonds as may be required to provide for exchanges or transfers of Bonds authorized hereunder;

The Treasurer is authorized to arrange for the sale of the Bonds to the New Hampshire Municipal Bond Bank or to such other parties at public or private sale as the Treasurer determines to be in the City's interest, to execute and deliver loan agreements and other contracts for that purpose, including without limitation loan agreement(s) with the New Hampshire Municipal Bond Bank, and to select and hire such financial advisors, underwriters, registrars, paying agents, transfer agents, and other consultants, if any, as the Treasurer deems necessary to assist with the sale of the Bonds, all on such terms not inconsistent with this Order as the Treasurer shall approve;

The Treasurer is authorized to prepare, or cause to be prepared, a Preliminary Official Statement and an Official Statement for use in the offering and sale of any of the Bonds herein authorized, any such Preliminary Official Statement and Official Statement to be in such form and contain such information as may be approved by the Treasurer, with the advice of the bond counsel for the City, and that the use and distribution of any such Preliminary Official Statement and Official Statement in the name and on behalf of the City in connection with offering the Bonds for sale is approved;

The Treasurer on behalf of the City is authorized to covenant that (i) no part of the proceeds of the Bonds shall be used, directly or indirectly, to acquire any securities and obligations, the acquisition of which would cause the Bonds to be "arbitrage bonds" within the meaning of Section 148 of the Internal Revenue Code of 1986, as amended, (the "Code"), and (ii) the proceeds of the Bonds and the Project financed by the Bonds shall not be used in a manner that would cause the Bonds to be "private activity bonds" within the meaning of Section 141 of the Code;

The Treasurer is authorized to designate any of the Bonds, as applicable, as qualified tax exempt obligations for purposes of Section 265(b)(3) of the Code;

In connection with the Bonds, the Treasurer is authorized to execute and deliver on behalf of the City an Arbitrage and Use of Proceeds Certificate in form approved by the City's bond counsel, and to covenant on behalf of the City to file any information report and pay any rebate due to the

United States in connection with the issuance of the Bonds, and to take all other lawful actions necessary to ensure that the interest on the Bonds will be excludable from the gross income of the owners thereof for purposes of federal income taxation and to refrain from taking any action which would cause interest on the Bonds to become includable in the gross income of the owners thereof;

The Treasurer is authorized to covenant and agree, on behalf of the City, for the benefit of the holders of the Bonds, that the City will file any required reports, make any annual financial or material event disclosure, and take any other actions that may be necessary to ensure that the disclosure requirements imposed by Rule 15c2-12 of the Securities and Exchange Commission, if applicable, are met;

Appropriate officials of the City are authorized to execute and deliver on behalf of the City such other documents and certificates as may be necessary or convenient to the issuance, execution, or delivery of the Bonds;

The Treasurer, City Manager, Clerk, and other proper officials of the City are authorized and empowered in its name and on its behalf to do or cause to be done all such acts and things, not inconsistent herewith, as may be necessary or desirable in order to effect the issuance, sale, and delivery of the Bonds and the accomplishment of the Project herein authorized;

If the Treasurer, City Manager, or Clerk for any reason is unavailable to, as applicable, approve, execute, or attest the Bonds or any related financing documents, the person or persons then acting in any such capacity, whether as assistant, deputy, or otherwise, is authorized to act for such unavailable official with the same force and effect as if such official had himself/herself performed such act;

If any of the officers or officials of the City who have signed, attested, or sealed the Bonds shall cease to be such officers or officials before the Bonds so signed, attested, and sealed shall have been actually authenticated or delivered by the City, such Bonds nevertheless may be authenticated, delivered, and issued with the same force and effect as though the person or persons who signed, attested, or sealed the Bonds had not ceased to be such officer or official; and also, any such Bonds may be signed, attested, or sealed on behalf of the City by those persons who, at the actual date of execution of the Bonds, shall be the proper officers or officials of the City, although at the nominal date of the Bonds any such person shall not have been such officer or official;

The term "cost" or "costs," as used herein and applied to the Project, includes all costs related to the Project, including without limitation costs, as applicable, for (1) acquiring, constructing, renovating, repairing, improving, equipping, designing, and engineering all or any portion of the Project and infrastructure related to the Project; (2) site preparation, including as applicable, removal of any existing buildings and improvements; (3) any real property interests, rights, easements, licenses and franchises acquired or conveyed in connection with the Project; (4) planning and development, site selection, preparation of specifications, surveys, engineering and feasibility studies, and other professional services associated with the Project; (5) environmental studies, appraisals and assessments; and (6) financing charges and issuance costs related to the

sale and issuance of the Bonds, including without limitation premiums for insurance, interest prior to and during construction and for a period not greater than three (3) years from the issue date of the Bonds and for any additional period permitted under Section 148 of the Code, financial advisor fees and costs, underwriters' fees and costs, legal and accounting fees and costs, application fees, and other fees and expenses;

The Treasurer in consultation with the City's bond counsel is authorized to implement written procedures with respect to the Bonds for the purpose of: (i) ensuring timely "remedial action" for any portion of the Bonds that may become "non-qualified bonds," as those terms are defined in the Code and regulations thereunder; and (ii) monitoring the City's compliance following the issuance of the Bonds with the arbitrage, yield restriction and rebate requirements of the Code and regulations thereunder;

The City resolves and declares its official intent pursuant to Section 1.150-2(e) of the Treasury Regulations that the City reasonably expects to use the proceeds of the Bonds to reimburse certain original expenditures from the City's general or other fund, paid not earlier than 60 days prior to adoption of this Resolution or to be paid, which original expenditures have been or will be incurred in connection with costs of the Project; and further declares that the City reasonably expects that the amount of Bonds authorized hereby is the maximum principal amount that the City will issue to finance the Project;

The Clerk is authorized and directed to file an attested copy of this Order in the record of proceedings of the City Council, which record shall be open to public inspection; and

All actions undertaken by the City consistent with this resolution are hereby confirmed, ratified and approved. *(2/3 Vote Required)*

Mr. Morris clarified that the \$1 million bond is to update the City's dispatch equipment. The City is operating on approximately 20-year-old equipment that may or may not go out at any time. The City will continue working on the regional dispatch and if it goes forward, it will come back to the Council for approval. The City has gotten some used parts to keep the current equipment going, if needed. Mr. Morris said it will cost approximately \$15,000 to go through the bond application process. If Council approves this, it will be combined with the other bond. Bond Counsel will help set this up so the equipment is paid off before the end of its useful life. This will upgrade the radio equipment for dispatching. Police Chief Chase said some spare parts were being thrown away, so he got them; the City didn't purchase them.

Mary Walter, Finance Director, said this bond will be handled as a blended rate. The City will pay for Pleasant Street for all 20 years and the first 5 years, the City will pay on the dispatch equipment.

Mr. Morris said there is no CARES Act funding available for this. However, the City will continue to look for grants.

Councilor Sweetser asked if the equipment will work for the regional dispatch center. Mr. Morris said he is working through some of the details to know what direction to go in. Councilor Sweetser would like a deadline set; Mr. Morris will work on that.

Fire Chief Bryan Burr said they have two frequencies, but one is not recordable, so they try not to use it. With this bond, he hopes to add the fire ground frequency to the system.

Chief Chase said Claremont dispatches for Cornish, Unity/Lempster emergency calls, and the Sheriff's Department. He has been approached by other agencies who would like to explore dispatching through us, but he doesn't want to tax the old equipment. There is the possibility of offsetting revenues for dispatching for other agencies.

Mr. Morris said the City will continue talks on a regional dispatch center. This bond is enough to replace Claremont's equipment.

A motion was made by Councilor Kier and seconded by Councilor Sweetser to adopt Resolution 2021-9 Authorize Bond for Up to \$1 Million for Communications Dispatch Center.

Councilor Kier read the resolution into the record.

Mayor Lovett opened the public hearing.

Walt Stapleton, Ward 3, asked about the nature of the equipment. Mr. Morris said the City will work with a consultant to design what fits the City's needs and also what can be expanded.

Chief Chase said base radios and equipment interface are needed. They may have to put up other antennas. This is not for records management or body cameras.

Mayor Lovett closed the public hearing.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Kurt Beek Memorial Garden – Public Hearing

Ms. Merrill said that Kurt Beek's work was really important to the City. The estimated cost for the garden, site work, and concrete pad will probably be about \$7,500. Pursuant to the Code on naming memorials, a letter was placed in the Council packet. Ms. Merrill said there are two proposed motions, one for naming the Memorial Garden, and the other to authorize fundraising.

A motion was made by Assistant Mayor Damren and seconded by Councilor Sweetser that in honor of his significant public service to the City of Claremont and, especially for his project management of the Water Street reconstruction, pedestrian bridge and Visitors Center Green construction, Sawtooth parking lot adaptive reuse, Claremont Savings Bank Community Center construction, Drapers Corner road improvements, and brownfield remediation of the former Monadnock Gas Works site, the Claremont City Council hereby designates a portion of the Visitors Center Green to the west of the Visitors Center as the Kurt Beek Memorial Garden, and hereby authorizes the City Manager or his designees to work with the Planning & Development Department to place a suitable plaque thereon, commemorating the naming this day of a portion of the Visitors Center Green as the Kurt Beek Memorial Garden.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

A motion was made by Councilor Sweetser and seconded by Councilor Koloski that the Claremont City Council hereby authorizes a fundraising project to create a pollinator garden and bench next to the Visitors Center in memory of Kurt Beek. All funds received for this project as well as a listing of all donors and donations, whether cash, material or in kind, shall be forwarded to the City's Treasurer on a periodic basis as established by the City's Finance Director. It is anticipated that this project shall have no impact on the tax rate. Upon conclusion of the fundraising project, a summary of the donations and the value of the project shall be presented to the Council for final acceptance.

Ms. Walter said to submit donations, people typically write a check to the City of Claremont and they can put "For Kurt Beek's Memorial Garden" on the memo line. She keeps a log of the donations.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Because of the lateness of the meeting, Proposed Council Rules Changes was moved to the end of New Business.

NEW BUSINESS

Donation of Moody Park Map Kiosks

Mark Brislin, Parks and Recreation Director, introduced Bryce Weymouth, Life Scout, who is seeking to obtain Eagle rank, and Alex Herzog, Scout Master for Troop 38.

Mr. Weymouth said that this Moody Park Map Kiosk is his Eagle Scout project. The map kiosk will be located just off the access road in Moody Park. Mr. Brislin said it is right near the sand pit area where three different trails intersect.

Mr. Herzog spoke about Mr. Weymouth’s leadership development and that he expects great things from him.

A motion was made by Councilor Kier and seconded by Councilor O’Hearne that the Claremont City Council hereby accepts with sincere appreciation a donation from Bryce Robert Weymouth, a proud Life Scout seeking to obtain his Eagle rank, of a map kiosk for Moody Park.

The Claremont City Council also accepts with sincere appreciation a donation of three more map kiosks for Moody Park from John Lambert and local scout groups.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes
Motion carried 9-0.

Donation of Moody Park Tree

Mr. Brislin said Samantha Jean's daughter passed away and she would like to donate a tree in her daughter's memory.

A motion was made by Councilor Kier and seconded by Councilor Matteau to accept, with sincere appreciation, the donation of a tree from Samantha Jean in memory of her 5-year old daughter, to be planted at Moody Park.

Roll call vote:
O'Hearne - yes
Kier - yes
Sweetser - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Accept OHRV Enforcement Grant of \$3,600 from NH Fish and Game

Chief Chase said this is a grant that the City has participated in for about 10 years. There are no matching funds and the Police Department will use its ATV.

A motion was made by Councilor Koloski and seconded by Councilor Sweetser to authorize the City Manager, or his designees, to accept and expend a grant in the amount of three thousand, six hundred dollars (\$3,600.00) and to enter into an agreement with the State of New Hampshire Fish and Game Department for the purpose of Off Highway Recreational Vehicle enforcement by the Claremont Police Department.

Roll call vote:
O'Hearne - yes
Kier - yes
Sweetser - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Apply for CARES Act Funding for Elections – Public Hearing

Mr. Morris said CARES (Coronavirus Aid, Relief, and Economic Security) Act funding is available to help with the elections in September and November.

A motion was made by Councilor Sweetser and seconded by Assistant Mayor Damren that after a public hearing duly noticed, the Claremont City Council hereby authorizes the city manager, or his designees, to take such actions and execute all documents as may be necessary to apply for, accept and expend grant funds through the federal CARES Act (DC20101CARES) for the upcoming elections in an amount not to exceed \$26,405. Said funds are “to prevent, prepare for, and respond to coronavirus, domestically or internationally, for the 2020 Federal election cycle.” The CARES Act provided the funds to EAC under Section 101 of the Help America Vote Act (HAVA) which authorizes EAC to provide funds to states to “improve the administration of federal elections.” The EAC followed the requirements of Section 101 and allocated a portion the funds to the State of New Hampshire to address issues arising from the pandemic during the primary election in September 2020 and the general election in November 2020.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-12 to Accept and Expend Airport Avigation Easement Project Grant from FAA – Public Hearing

WHEREAS the City is undertaking an Airport Avigation Easement Project at the Claremont Municipal Airport (the "Airport"); and

WHEREAS the City has applied for a grant from the Federal Aviation Administration (the "FAA") in the amount of \$450,000.00 to fund the Airport Avigation Easement Project at the Airport, said amount including local matching funds from the City in the amount of \$22,500.00; and

WHEREAS the City would like to now accept and expend said grant funds;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the FAA grant (Project SBG-02-18-2021 Airport Avigation Easement Project in the amount of \$450,000.00; and

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$450,000.00 with \$22,500.00, as the City's share of the project, to be taken from the Airport Reserve Account and the remaining from the FAA grant, SBG-02-18-2021 (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Chief Burr said this was first presented to the Council at its July 8 meeting during the Airport Reconstruction Project discussion. As part of the project, the City needs to gain easements for the protected airspace at the ends of the runway. Local match is 5%, \$22,500.

A motion was made by Assistant Mayor Damren and seconded by Councilor Kier to adopt Resolution 2021-12 to Accept and Expend Airport Avigation Easement Project Grant from FAA.

Assistant Mayor Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Donation of 20 Kidde Smoke Alarms

Chief Burr said that these 20 alarms will outfit several homes. They have 10-year lithium batteries

A motion was made by Assistant Mayor Damren and seconded by Councilor O'Hearne to accept with sincere appreciation a donation from Yusen Associates of 20 battery powered Kidde brand, smoke alarms, valued at \$800.00, for the Claremont Fire Department.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Donation of Exercise Equipment to the Fire Department

Chief Burr said this is the third donation from the Professional Firefighters of Claremont in three decades. This helps with the firefighters' physical and mental condition.

A motion was made by Councilor O'Hearne and seconded by Councilor Matteau to accept with sincere appreciation a donation from the Professional Firefighters of Claremont, IAFFL-1571 of 2 Bowflex Treadmills and 1 Schwinn IC3 Stationary Bike, valued at \$2,499.97, for the Claremont Fire Department.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Proposed Council Rule Changes

Mayor Lovett proposed the following Council Rule changes:

1. Consent Calendar: The mayor, in collaboration with the city manager, may place items on the consent calendar that do not require a public hearing and are routinely approved by a large majority of the governing body. Examples of such items include, but are not limited to, appointments to boards, committees or commissions, the acceptance of gifts/donations, and annual review of various documents. Any member of the Council may, upon request under Agenda Changes, pull an item off the consent calendar. That item will then be placed under either Old or New Business as appropriate.

2. Change to Rule #22 (Order of Business): Should a consent calendar be adopted, the Order of Business would be amended to read:
 1. Pledge of Allegiance
 2. Roll Call
 3. Agenda Changes
 4. Report of the Secretary
 5. Mayor's Notes
 6. City Manager's Report
 7. Citizen's Forum - Non agenda Items (Note: Citizens will be allowed to speak on agenda items when they are discussed by the City Council)
 8. Consent Calendar
 9. Old Business
 10. New Business
 11. Committee Reports
 12. Future Agenda Items and Directives
 13. Adjournment
3. Appointment of Councilors to Boards, Committees or Commissions: Appointments of Council members to boards, commissions or committees will occur in January via the nomination process at a Council meeting. Council members should indicate their desire to serve on a board, commission or committee NLT the first regularly scheduled meeting in January. After accepting all nominations for an appointment, the Mayor will ask for a vote for each member seeking the appointment. The individual with the highest number of votes shall be appointed for a one-year term. If, after successfully completing his/her one-year term, the Council member is seeking reappointment, he or she should be given preference.
4. Citizen Letters: When the Council receives a citizen's request to enter a personal letter into the record, the letter will be attached to the minutes in its entirety. It will not be read into the record unless the citizen does so or has another citizen do so on his/her behalf. If the topic of the letter is not an agenda item, the citizen shall read the letter during citizen's forum. If the topic of the letter pertains to an agenda item, the citizen will read the letter at the time during which that agenda item is discussed.

Mayor Lovett said number 4. Citizen Letters needed more work and she removed it from discussion tonight.

There was discussion of 1. Consent Calendar. Mayor Lovett explained the items would be noncontroversial in nature. If any member of the Council wished, they could pull off an item from the Consent Agenda during Agenda Changes. Mr. Morris said a memo for each item on the Consent Agenda would be included in the packet in order for the Council to make a decision. Mayor Lovett said it would include items such as donations, and appointments to boards and commissions.

Council Matteau clarified that there would be no public hearings and that only one Councilor request would be needed to pull an item off. Mayor Lovett said yes.

Mr. Koloski said he is not in favor of making this adjustment to Council Rules. For donations, he likes to hear from the donors about those. He wants to thank them directly.

Mayor Lovett said if she knew there was going to be a special guest, she wouldn't put the item on the Calendar. If it is a member of the Administration making the presentation, the information would be in the packet. Also, if someone wanted to discuss an item more in depth, it can be pulled off the Calendar.

Councilor O'Hearne agreed with Councilor Koloski and is not in favor. This is a Council of nine people and he feels there is time to make these determinations and to vote on these items.

A motion was made by Councilor Stone and seconded by Assistant Mayor Damren to move the question.

Roll call vote:

O'Hearne - no

Kier - no

Sweetser - no

Damren - yes

Matteau - no

Koloski - no

Contois - no

Stone - yes

Lovett - yes

Motion failed 3-6.

There was a consensus to not to try the Consent Calendar.

3. Appointment of Councilors to Boards, Committees or Commissions. Councilors Koloski, Matteau and O'Hearne were not in favor of this. Regarding appointments being made in January, not all are made in January. Regarding the one-year appointment, most Boards, Committees or Commissions appointments are for two years to coincide with Council terms.

Regarding what to do when multiple people are interested in a seat, Councilor Stone said past practice has been that Councilors let it be known they are interested and then each Councilor states the name of the person they are voting for.

Mayor Lovett said if Council wants to remove the one-year requirement, she can do that.

Based on what was said, she will come back with modification to 3. Appointment of Councilors to Boards, Committees or Commissions, and 4. Citizen Letters.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said the resolution pertaining to RSA 79-E will go to the Policy Committee. She will send her thoughts to Councilor Stone regarding the statute.

Mayor Lovett asked Councilor Stone about the status of the Holiday Display Policy. Councilor Stone said it is on the September 3rd meeting agenda. Mr. Morris said he is working with Attorney Shawn Tanguay to send a draft policy to the Policy Committee.

Councilor Matteau asked for clarification regarding the legal opinion that a Councilor was able to vote on a motion to censure him. Mr. Morris said there is no document, but at the February 27, 2019, Council meeting, at about the 3-hour point Attorney Tanguay said that Councilor Stone did not have to recuse himself. Councilor Kier said that a voice can be heard off screen, but it is not clear who said it. Councilor Stone said a majority of the sitting Councilors were present at that meeting and can validate that opinion. Councilor Matteau said she would feel better to have the attorney clarify what was said, in writing. Mr. Morris said he can do it, but whether or not Councilor Stone voted, the vote would still be against censure, so he didn't think it would be prudent to spend taxpayer money for that at this time.

Mayor Lovett said perhaps there should be a Council Rule for when a Councilor should recuse themselves. She would check to see if it is covered in Council Rules. Councilor O'Hearne said that in the absence of Council Rules, this Council follows Roberts Rules of Order. Mayor Lovett said based on counsel from NHMA, they have advised differently. She said this can be discussed during a special meeting for good governance.

Councilor Stone would like a Future Agenda Item to discuss that it has been adopted that when Council Rules are silent, that Roberts Rules apply.

Councilor Sweetser believes it is reasonable that adults should be allowed to attend City Council meetings in person.

Mr. Morris will talk with our IT folks to see if Council Chambers can be ready for the next Council meeting.

Councilor Koloski wants signage (A-frames, digital signs) put out reminding people to vote.

Councilor Stone supports going back to public meetings with appropriate precautions. He is in favor of going back to the Community Center, if necessary.

Councilor Contois commended the City Manager and Staff regarding the revitalization tax relief and the two bonds passed tonight. Claremont is a community on the move.

Councilors agreed to put the discussion of opening Council meetings to the public on the September 9th Council agenda.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:49 p.m., a motion was made by Councilor O'Hearne and seconded by Assistant Mayor Damren to adjourn.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council